

Company of Sacramento, Ltd." which was a separate corporation, though the entities had a business relationship and the partnership and corporation shared three senior officers. (*Id.* at 351.) The Court of Appeal upheld the amendment based on the fact there was some substantial identity between the two defendants, the plaintiff showed excusable mistake, and there was an awareness by the defendant of the true tortfeasor that the claims were being asserted against it. (*Id.* at 354.) The Court finds these factors present here and support allowing the amendment. (*See also Carr v. Barnabey's Hotel Corp.* (1994) 23 Cal. App. 4th 14, 20-23 [citing the *Mayberry* decision, finding allowing an amendment of verdict after trial and deeming it to relate back was proper in an employment discrimination action, where the plaintiff employee could have discovered the correct name of her employer to sue from her W-2 forms (Peppercorn, Ltd., the true employer), but named only Barnabey's Hotel Corporation which had ceased doing business years before, with Peppercorn doing business as Barnaby's Hotel].)

The City also cites *Thompson v. Palmer Corp.* (1956) 138 Cal.App.2d 387 as an illustration of a case in which amendment was not allowed. There, the Court of Appeal upheld the dismissal of a corporation based on the statute of limitations, concluding the misnomer doctrine did not apply. In that case, the plaintiff sued four individuals by name "doing business as Bob 'N Del," as well as Palmer Corporation as defendants, and alleged the individuals were at all times "associated together as general partners and doing business under the fictitious name and style Bob 'N Del." More than a year after the accident, the plaintiff tried amend the complaint to name "Bob 'N Del, a corporation." (*Id.* at 389.) The Court found the dismissal proper because "'Bob 'N Del' was not designated as a party defendant in the original complaint. It was not designated as a partnership, as urged by plaintiffs. If it had been designated as a party defendant and had been described as a partnership, we would have a different question. The original complaint designated R. C. Tucker, Jr., D. D. Rohrbaugh, R. C. Tucker, Sr., David Ritchie, and Jack Alber as individuals doing business as Bob 'N Del. There was no misnomer or mistake in the name of a party. The only misdescription or mischaracterization was in describing the individuals as 'doing business as Bob 'N Del.' " (*Id.* at 396.)

The Court finds this case to be more like *Hawkins*, *Mayberry*, and *Carr* than *Thompson*. The original petition alleged the role the City Council played in approving the Updated CAP and GHG Guidelines being challenged in the petition. The name City of San Ramon was in the name of the caption qualified by "City Council" and "Planning Commission," the agents of the City's government that approved the Updated CAP and GHG Guidelines on behalf of the City. The Court finds allowance of the amendment as a misnomer under those decisions is proper under the circumstances.

18. 9:00 AM CASE NUMBER: N25-1793
CASE NAME: DRILL TECH DRILLING & SHORING, INC. VS. CALIFORNIA OCCUPATIONAL SAFETY AND HEALTH APPEALS BOARD
***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**
FILED RE: ROBERT D. AYERS
FILED BY: DRILL TECH DRILLING & SHORING, INC.
TENTATIVE RULING:
Summary

Petitioner Drill Tech Drilling & Shoring, Inc. ("Petitioner") filed a Notice of Hearing on Verified Application for Admission *Pro Hac Vice* filed by Robert D. Ayers. The Motion is **granted**. No appearance is required on May 13, 2026.

Background

On December 3, 2025, Petitioner filed Notice of Hearing, through Counsel Holland & Hart, LLP, and the Verified Application for Admission of Robert D. Ayers to the Bar of this Court *Pro Hac Vice* ("Motion"). The Motion was supported by the Verified Application of Robert D. Ayers, and the Declaration of Counsel Matthew Hippler. The Proof of Service shows that service was accomplished via electronic service and First Class Mail on December 3, 2026, including service to the Office of Special Admissions of the California State Bar. The Court did not receive timely oppositions to this Motion.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Robert D. Ayers declares facts under penalty of perjury to support the application under CRC Rule 9.40. Mr. Ayers is an attorney licensed to practice in the States of Texas, Utah, Wyoming, Washington and in the Federal District Courts of Texas, Wyoming, and North Dakota. He represents that he is employed by Holland & Hart, LLP. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted *Pro Hac Vice*.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

1. Defendant's motion is **granted**.
2. Robert D. Ayers, Esq, is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case.
3. Counsel Hippler is ordered to prepare and e-file a proposed order granting Verified Application of Robert D. Ayers to appear as Counsel *Pro Hac Vice*, with a copy of this ruling attached thereto.
4. No appearance is required on May 13, 2026.